

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Magdalena Azmitia	Team: Squad #15	CCRB Case #: 201706807	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 08/15/2017 11:35 PM, Wednesday, 08/16/2017 12:00 AM	Location of Incident: Inside 109th Precinct Stationhouse	18 Mo. SOL 2/15/2019	Precinct: 109		
Date/Time CV Reported Thu, 08/17/2017 6:56 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 08/17/2017 6:56 PM		
Complainant/Victim	Type	Home Address			
Witness(es)	Home Address				
Subject Officer(s)	Shield	TaxID	Command		
1. POM Rebutino Borges	31769	936229	109 PCT		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. POM Joseph Fong	26877	932650	109 PCT		
2. POF Kristina Dejesus	05694	960435	109 PCT		
Officer(s)	Allegation	Investigator Recommendation			
A . POM Rebutino Borges	Abuse: Police Officer Rebutino Borges threatened to arrest § 87(2)(b)	A . Unsubstantiated			

Case Summary

On August 17, 2017, § 87(2)(b) filed this complaint via the CCRB's online complaint submission form.

On August 15, 2017, at approximately 11:35 P.M., § 87(2)(b) accompanied his friend § 87(2)(b) to the 109th Precinct stationhouse to inquire about changing an AIDED report regarding a domestic incident that took place between § 87(2)(b) and her roommate at her apartment on August 12, 2017, and which resulted in an injury to § 87(2)(b) and § 87(2)(b). § 87(2)(b) hoped to edit the report to include more details to accurately reflect the facts of the incident. At the stationhouse, § 87(2)(b) spoke with PO Rebastino Borges of the 109th Precinct, who refused to edit the report. § 87(2)(b) also spoke with PO Borges' partner, PO Joseph Fong of the 109th Precinct. § 87(2)(b) noted to the investigator that he had had a few glasses of wine before going to the stationhouse, and PO Borges allegedly told him, "Because I can smell alcohol on you, if I want I can send you to jail" (**Allegation A**). PO Kristina Dejesus, who was the assigned telephone switchboard operator at the time of the incident, was in a room adjacent to the complaint room where the incident took place at the time. PO Borges ultimately did not change the report and § 87(2)(b) left the stationhouse of his own volition.

There is no video footage of the incident.

Mediation, Civil and Criminal Histories

- On August 24, 2017, mediation was accepted by § 87(2)(b) [BR 02]. On September 25, 2017, mediation was rejected by PO Borges as an alternative to resolve this complaint [NYPD 04].
- On November 14, 2017, a request to determine if a Notice of Claim was filed was submitted; confirmation from the Office of the New York City Comptroller will be forwarded upon receipt [BR 08].
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) [BR 10].
- PO Borges has been a member of service for 12 years and this is his first CCRB complaint.

Potential Issues

Although § 87(2)(b) was present for the incident, she was not asked for either a telephone statement or a sworn statement because § 87(2)(b) does not speak English and cannot accurately testify to what occurred. § 87(2)(b) confirmed via Korean interpreter that she also does not understand English.

Findings and Recommendations

Allegation Not Pleaded

§ 87(2)(g)

Allegation A – Abuse of Authority: Police Officer Rebutino Borges threatened to arrest

§ 87(2)(b)

During his in-person interview at the CCRB, § 87(2)(b) stated that he had accompanied § 87(2)(b) to the 109th Precinct stationhouse at approximately 12:00 P.M., on August 15, 2017, to obtain a copy of the AIDED report and to request corrections, and was told that they would need to speak to the officer who originally filed the report [BR 04]. § 87(2)(b) and § 87(2)(b) went back to the stationhouse at 11:00 P.M. that night to speak with PO Borges, who had prepared the report. § 87(2)(b) told PO Borges that he wanted to correct the report to accurately reflect the incident § 87(2)(b) that § 87(2)(b) could get an order of protection against her roommate. During this exchange, PO Borges commented on § 87(2)(b)'s intoxication saying "Because I can smell alcohol on you, if I want I can send you to jail." § 87(2)(g)

During his testimony at the CCRB, PO Borges stated that in response to § 87(2)(b)'s request, he said that § 87(2)(b) would need to go to landlord-tenant court to resolve the issue [BR 05]. § 87(2)(b) said, "You're not going to do anything for her?" repeatedly and became irate, gesturing with his hands and yelling at PO Borges, PO Fong, and other civilians in the complaint report room. § 87(2)(b) moved close to PO Borges and was inches from his face. § 87(2)(b)'s eyes were glassy, his words were slurred, and PO Borges could smell alcohol on his breath. PO Borges did not comment on § 87(2)(b)'s intoxication or tell § 87(2)(b) that he could be arrested or go to jail because he was intoxicated nor did he hear about any other officers telling § 87(2)(b) that he could be arrested for that reason. PO Borges did not tell § 87(2)(b) that he could be arrested or threaten to arrest him for any other reason, as § 87(2)(b) was not doing anything he could have been arrested for. PO Borges noted that it could have been argued that § 87(2)(b) was being disorderly, but would only be given a summons for this.

§ 87(2)(g)

When PO Borges refused to edit § 87(2)(b)'s AIDED report, he asked § 87(2)(b) to leave, which § 87(2)(b) refused to do. § 87(2)(b) had a strong odor of alcohol on his breath, his eyes were slightly bloodshot and watery, and his volume increased as the conversation continued. PO Fong could

not recall whether PO Borges had made any comments regarding § 87(2)(b)'s intoxication. He did not hear PO Borges or any other officer tell § 87(2)(b) that he could be arrested or go to jail because he was intoxicated. PO Fong did not hear any other officers tell § 87(2)(b) he could be arrested, nor did he hear about any other officers doing so after the fact. PO Fong noted that at most, it was possible that § 87(2)(b) could be arrested for trespassing upon the stationhouse after being asked to leave.

In her testimony to the CCRB, PO Dejesus stated that she had no recollection of the incident [BR 06]. The area in which she worked that night is near the entrance of the stationhouse and next to the complaint room, approximately five feet away. PO Dejesus noted that the telephone switchboard operator is normally able to hear what is happening in the complaint room. She also noted that any civilian looking to make a complaint would have to speak with her first, but she did not recall speaking to § 87(2)(b). PO Dejesus was provided with some details about the incident in an attempt to refresh her memory, but she still had no recollection of the incident.

There was no command log entry regarding this incident.

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **unsubstantiated**.

Squad: 15

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date